

25STCV26901 25STCV26901

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Case Number: 25STCV26901 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 16, 2026 TRIAL DATE: January
3, 2028

CASE: Sean Christopher Sabo v. Luciano
Lagunas Guevarra, et al.

CASE NO.: 25STCV26901

PLAINTIFF

SEAN CHRISTOPHER SABO'S MOTIONS TO COMPEL DEFENDANTS EVANS & SON, INC.'S
AND LUCIANO LAGUNAS GUEVARRA'S VERIFIED RESPONSES WITHOUT OBJECTIONS TO
FORM INTERROGATORIES, SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION OF DOCUMENTS
AND REQUEST FOR SANCTIONS

PLAINTIFF

SEAN CHRISTOPHER SABO'S MOTIONS FOR AN ORDER THAT THE TRUTH OF ANY MATTERS
SPECIFIED IN REQUESTS FOR ADMISSION, SET ONE TO DEFENDANTS EVANS & SON,
INC. AND LUCIANO LAGUNAS GUEVARRA BE DEEMED ADMITTED, AND REQUEST FOR MONETARY
SANCTIONS

PLAINTIFF

SEAN CHRISTOPHER SABO'S MOTIONS TO QUASH OR MODIFY DEPOSITION SUBPOENA FOR
BUSINESS RECORDS DIRECTED TO CUSTODIAN OF RECORDS OF MEMORIAL CARE MEDICAL
GROUP

This is a motor vehicle negligence action. Before the court are eleven motions filed by Plaintiff Sean Christopher Sabo: (1) six motions to compel Defendants, Evans & Son, Inc. and Luciano Lagunas Guevarra, to provide verified responses without objections to Plaintiff's first set of Form Interrogatories, Special Interrogatories, and Request for Production of Documents; (2) two motions to deem the truth of any matters specified in Plaintiff's Requests for Admission, Set One, admitted against Defendants; (3) three motions to quash Defendants' subpoenas issued to the custodian of records of Memorial Care Medical Group. The court begins by addressing together the motions to compel and motions to deem admitted.

I. DISCUSSION RE MOTIONS TO COMPEL AND DEEM ADMITTED

A. Background

On April 29, 2026, Plaintiff filed the motions to compel and motions to deem admitted. Plaintiff requests sanctions against Defendants and their counsel of record.

On September 3, 2026, Defendants filed an omnibus opposition.

On September 8, 2026, Plaintiff filed an omnibus reply.

The court notes that the motions are mostly moot. Defendants served verified responses on June 5, 2026. (Morales Decl., ¶ 6; Khaefi Decl., ¶ 9.) The court proceeds to consider only the request for sanctions.

B. Legal Standard

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection

to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c); 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. (Code Civ. Proc., § 2033.280(a).)

Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 81 (*Kwan Software*).)

C.

Application

The court will award sanctions. It is undisputed Plaintiff properly served Defendants with the at-issue discovery on February 18, 2026, and that Plaintiff provided Defendants with three extensions to respond. After the last extension, responses were due on April 27, 2026, yet Defendants did not provide any responses until after the filing of these motions. Given this background, sanctions are warranted. In the context of admissions requests, they are mandatory. (Code Civ. Proc., § 2033.280(a).)

Defendants argue it would be unjust to impose sanctions because "Defense counsel and defendants were dealing with extraordinarily busy work schedules and defense counsel was preparing for a long cause trial which went for it on May 8, 2026 and concluded on June 15, 2026. The responses required consultation, investigation and legal research which took time. As the court and parties are aware, proposed responses have to be reviewed and approved by the clients (sic) Despite, these challenges, responses were served on June 5, 2026 a little more

than two months after they were originally due." (Opp., p. 4:19-24.) The argument is not well taken. The original deadline to provide discovery responses

was seven weeks before Defense counsel's long cause trial began. Defendants nor their counsel identify any persuasive reason for their failure to comply with their discovery obligations in a timely fashion. Further, Defense counsel does

not meet their burden to show they did not counsel discovery abuse. Accordingly, sanctions are imposed against each defendant and their counsel of record in the reduced sum of \$3,520.00.ﷲﷲﷲ

D.

Conclusion

The motions are Moot. Plaintiff's request for sanctions is Granted. Each defendant and their counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$3,520 within 30 days of this order.ﷲ

II. DISCUSSION

RE MOTIONS TO QUASH

A. Background

On

July 2, 2026, Plaintiff filed three motions to quash, modify, or limit the scope of subpoenas that Defendants directed to the custodian of records for (i) Memorial Care Medical Group; (ii) Memorial Care Medical Group, Radiology; (iii) Memorial Care Medical Group, Billing. Plaintiff requests sanctions against Defendants and their counsel of record.

On

September 9, 2026, Defendants filed a combined opposition.[1]

On

September 10, 2026, Plaintiff filed an objection to Defendants' combined opposition.

Because the motions to quash raise the same substantive issues, the court addresses those motions together.

B. Legal Standard

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy. (Code Civ. Proc., § 1987.1.)

Monetary Sanctions

In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code of Civ. Proc. § 1987.2.)

C. Application

For

the time period from 06/03/2021 to present, the subpoenas seek the following records:

Including, but not limited to, any and all medical records of treatment rendered at Memorial Care Orange Coast Medical Center,

18111 Brookhurst Street, Fountain Valley, California 92708-6728.

All documents and records in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all descriptions of exercises prescribed, documentation which indicate date, and time of patient's appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient.

...

Including, but not limited to, any and all
Films, records of treatment rendered at Memorial Care Coverage Medical Center
18111 Brookhurst Street, Fountain Valley, California 92708-6728.

COPIES of all original x-rays, films, CT
scans, MRIs and any other scan or images taken and/or maintained, including a
comprehensive list of all dates and body parts of all films, CT scans, MRIs and
all other images or scans provided. All images and films must be provided on CD
if possible.

...

Including, but not limited to, any and all
Billing records of treatment rendered at Memorial Care Orange Coast Medical
Center, 18111 Brookhurst Street, Fountain Valley, California 92708-6728.

All itemized statements of the billing
charges and/or consolidated statement of benefits, with diagnostic and
procedure codes including CPT and ICD-9/ICD-10 coding and all HCFA, UB08 and UB92
bills, to include the total charges private or governmental; any amounts
written off by the provider, and any amounts that are the patient's
responsibility and explanation of benefits, payment history, records of any
liens, and insurance billing or payment information, "emergency room physicians
bills and "radiology billing from all sources, to include any computer billing
or billing stored in any format and payment software that contains said
information.

Please note: If Emergency Room (ER)

physicians billing and/or Radiology billing is maintained by a separate department or third party billing entity, you are requested to provide the full name, address, phone number, email address and any additional contact information necessary to facilitate a records request.

Plaintiff argues the subpoenas are overbroad

because “the documents and things identified in the subject deposition subpoena for business records are not limited to conditions of Plaintiff which are tendered in this case, and the category of documents is not reasonably particularized, and not properly limited as to time, even with respect to conditions of Plaintiff that are the subject of his present claims.” (Mot., p. 9:2-5.) After reviewing the subpoenas, the court finds that they are partly overbroad.

The subpoenas are not limited to Plaintiff’s claimed injuries. The court will modify the subpoenas accordingly. However, the court finds the temporal scope is reasonable and declines to modify the time period.

The court acknowledges that it is difficult, if not, impracticable, to limit the scope of the subpoenas to Plaintiff’s claimed injuries. However, there is a workable solution. In addition to, and in furtherance of limiting the scope of the subpoenas, the court will allow Plaintiff the “first look” at the produced documents and set deadlines around redactions (if necessary) and motion practice (if necessary). In this way, the court balances the intrusion into Plaintiff’s privacy with Defendants’ right to defend against Plaintiff’s claims.

D. Conclusion

The motions to quash are GRANTED IN PART. The subpoenas are limited to documents related to Plaintiff’s claimed injuries. Plaintiff will have first look of the documents. Within 10 days of the production, Plaintiff must redact the documents, as necessary, and serve the redacted documents to Defendant. Plaintiff is to retain an unredacted copy of the production.

Within 10 days of service of the redacted documents, Defendant is to file any motions, as necessary, regarding the redactions.

Plaintiff's request for sanctions is DENIED.

III. DISPOSITIONS

1. The motions to compel and motions to deem admitted are Moot. Plaintiff's request for sanctions is Granted. Each defendant and their counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$3,520 within 30 days of this order.¿

2. The motions to quash are Granted In Part. The subpoenas are limited to documents related to Plaintiff's claimed injuries. Plaintiff will have first look of the documents. Within 10 days of the production, Plaintiff must redact the documents, as necessary, and serve the redacted documents to Defendant. Plaintiff is to retain an unredacted copy of the production.

Within 10 days of service of the redacted documents, Defendant is to file any motions, as necessary, regarding the redactions.

Plaintiff's request for sanctions is Denied.

Plaintiff to give notice, unless waived.

Dated: September 16, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Defendants' opposition is untimely. The court declines to consider the arguments raised therein. (Cal. R. Ct., rule 3.1300(d).)